

8	Vanasse v. Silverado Senior Living management, Inc.	TENTATIVE RULING: For the reasons set forth below, Plaintiffs Alma Boettcher Vanasse, by and through her Successor-in-Interest Laura Crosson, Laura Crosson, and Thomas Vanasse’s Motion to Augment Plaintiffs’ Expert Designation is DENIED. A. Statement of Law “After the setting of the initial trial date for the action, any party may obtain discovery by demanding that all parties simultaneously exchange information concerning each other’s expert trial witnesses to the following extent: (a) Any party may demand a mutual and simultaneous exchange by all parties of a list containing the name and address of any natural person, including one who is a party, whose oral or deposition testimony in the form of an expert opinion any party expects to offer in evidence at the trial.” (Code Civ. Proc., § 2034.210, subd. (a)¹; see §§ 2034.230, 2034.240, 2034.260 [procedural requirements].) “Within 20 days after the exchange ... any party who engaged in the exchange may submit a supplemental expert witness list containing the name and address of any experts who will express an opinion on a subject to be covered by an expert designated by an adverse party to the exchange, if the party supplementing an expert witness list has not previously retained an expert to testify on that subject.” (§ 2034.280, subd. (a).) “Except as provided in Section 2034.310 and in Articles 4 (commencing with Section 2034.610) and 5 (commencing with Section 2034.710), on objection of any party who has made a complete and timely compliance with Section 2034.260, the trial court shall exclude from evidence the expert opinion of any witness that is offered by any party who has unreasonably failed to do any of the following: (a) List that witness as an expert under Section 2034.260. (b) Submit an expert witness declaration....” (§ 2034.300, subs. (a) & (b).) “On motion of any party who has engaged in a timely exchange of expert witness information, the court may grant leave to do either or both of the following: (1) Augment that party’s expert witness list and declaration by adding the name and address of any expert witness whom that party has subsequently retained.” (§ 2034.610, subd. (a)(1); see Weil & Brown, Cal. Practice Guide: Civil
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¹ All further statutory references are to the Code of Civil Procedure, unless otherwise specified.

	Procedure Before Trial (The Rutter Group 2023) ¶¶ 8:1731, 8:1745 [court has “considerable discretion” to provide relief from the exclusion of expert testimony]; see <i>Bonds v. Roy</i> (1999) 20 Cal.4th 130, 149 [party must move to amend declaration, and it is within trial court’s discretion to grant or deny the motion].) “A motion under subdivision (a) shall be made at a sufficient time in advance of the time limit for the completion of discovery ... to permit the deposition of any expert to whom the motion relates to be taken within that time limit. Under exceptional circumstances, the court may permit the motion to be made at a later time.” (§ 2034.610, subd. (b); see <i>Perry v. Bakewell Hawthorne, LLC</i> (2017) 2 Cal.5th 536, 541 [party should invoke section 2034.610 “as soon as the party discovers the need to submit a declaration by a previously undisclosed expert”].) “The motion shall be accompanied by a meet and confer declaration under Section 2016.040.” (§ 2034.610, subd. (c)².) The court shall grant leave to augment or amend an expert witness list or declaration only if all of the following conditions are satisfied: (a) The court has taken into account the extent to which the opposing party has relied on the list of expert witnesses. (b) The court has determined that any party opposing the motion will not be prejudiced in maintaining that party's action or defense on the merits. (c) The court has determined either of the following: (1) The moving party would not in the exercise of reasonable diligence have determined to call that expert witness or have decided to offer the different or additional testimony of that expert witness. (2) The moving party failed to determine to call that expert witness, or to offer the different or additional testimony of that expert witness as a result of mistake, inadvertence, surprise, or excusable neglect, and the moving party has done both of the following:
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² Tham Declaration, ¶¶ 10-13; Exhibits 4-5 to Tham Declaration.